ANTI-CORRUPTION COMMISSION

COMMISSION MEETING FORM

MEETING NO.	152nd Commission Meeting
DATE:	24th November 2023
TIME:	02:00 PM
VENUE:	Druk Dradhir Khang

#	AGENDA & DISCUSSION	DECISIONS
1	Apprise on implementation of system study recommendations – PD *The Prevention Division presented the implementation status against the recommendations of the system study on Collection of Tourism Fees. As per the review, the implementation status is rated at 77.27%.*	**The Commission noted the implementation update and further directed the following:** - **Find out more on the discontinuation of the collection of fees from Kuensel Phodrang (Buddha Dordenma);** - **Find out more on the standard TAT for depositing the amount collected in cash and revisit the score accorded to the second recommendation; and** - **Revisit the appropriateness of the fourth recommendation.**
2	Update on Gift Rules consultation meeting – LD *The LD apprised on their plan to conduct consultation meeting with the stakeholders in the first week of December, 2023. Further, the common questions raised by the agencies to the Education Division during their sessions were also shared.* *Regarding the analysis on the implementation of the Gift Rules by agencies, the Division apprised that they have been informed by the Prevention Division on the impossibility of determining the exact year of implementation.*	**The Commission endorsed the plan to conduct consultation meeting and directed the following:** - **The Division to find an appropriate date for the meeting;** - **Ensure compliance to the ECB's requirement; and** - **Involve Prevention Division and Education Division during the consultation meeting.**
3	Present recommendations vis-à-vis review of the Regional Office (RO) Operationalization – PPD *In line with the PPD's ongoing initiative to*	**In principle, the Commission endorsed the recommendations to reinforce sectoral approach in the existing RO set-up and other recommendations as**

	review certain processes and functions of Departments/Divisions/Services/ROs, the review of ROs' operationalization was conducted towards strengthening their functions and complement realization of objectives of ROs as initially envisioned. Based on the findings of the review, some of the key recommendations proposed, among others are as follows: - *To reinforce sectoral approach in the existing RO set-up;* - *To conduct annual advocacy tours by RDs to enhance visibility;* - *To develop RO transfer policy;* - *HRS to coordinate adequate on-boarding sessions for staff transferred to ROs;* - *To conduct periodic vulnerability scanning coordination meeting among Division of Analysis and Research, Evaluation and Assessment Division and ROs;* - *Legal Division (LD) to conduct monthly coordination meeting with the Legal Officers in the regions to discuss and update on legal matters;* - *The Education Division to develop standard Information, Education and Communication material; and* - *Provide secretarial services centrally.* *The detailed review is attached as **Annex I**.*	**proposed with the specific directives to:** - **Refer Office Order related to the establishment of the RO to check the Terms of Reference of the ROs;** - **Tweak the Operationalization Guideline as deemed necessary; and** - **Refer minutes related to the jurisdictions of ROs and accordingly propose the change.**
4	Present draft policy and procedure on proactive investigation – PPD *In order to ensure common interpretation, determine procedures and facilitate information for the proactive investigation, PPD presented the draft policy and procedure on proactive investigation (presentation slides attached as **Annex II)***	**The Commission endorsed the proposed sources, procedures including the proposal to assign new case number for the proactive investigation without having to assign complaint registration number and the need to present the scope and magnitude for those cases proposed to be pursued as offshoot cases.** **In addition, the Commission directed to revisit the scope and definition of the proactive investigation.**

5	Any other: - Follow-up actions required of Departments/Divisions in relation to pertinent matters shared/discussed with Hon'ble Chairperson as an Advisor of the Interim Government to the Ministry of Finance – Hon'ble Chairperson *Hon'ble Chairperson updated the senior management on the pertinent matters apprised/discussed during the meeting with the Ministry of Finance as an Advisor of the Interim Government that require follow-up actions.* - MoU with the ICAC Mauritius – PPD *Subsequent to the Cabinet Secretariat's approval to sign MoU with the ICAC, Mauritius, the PPD communicated with ICAC to discuss the way forward for signing of the MoU. However, ICAC Mauritius informed on the impending legislative reform whereby the role and functionality of the ICAC may be reviewed. In this regard, the signing of the MoU was requested to be kept on hold until the finalization of the legislative reform.*	**Some of the follow-up actions required of Departments and Divisions are as follows:** - **DoI, DARe and PD to share necessary insights to the Department of Revenue and Customs to complement the ongoing reform in the Department;** - **PD to get back to the Department of Planning, Budget and Performance to discuss and clarify on the system study conducted on General Reserve;** - **DoPS to meet with the Department of Treasury and Accounts to draw clarity on the management of Escrow Account;** - **LD to share recommendations with the Ministry on disposal of gifts; and** - **DoI and PD to share experiences related to property valuation from the perspective of the investigations conducted in the Financial Institutes.** **Noted**

Commissioner **Commissioner** **Chairperson**

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